(b) Consultation

Such guidelines shall be developed after consultation with appropriate public and private sector interests (including the Secretary of Commerce, the Advisory Council on Historic Preservation, sport divers, State Historic Preservation Officers, professional dive operators, salvors, archeologists, historic preservationists, and fishermen).

(c) Use of guidelines in developing legislation and regulations

Such guidelines shall be available to assist States and the appropriate Federal agencies in developing legislation and regulations to carry out their responsibilities under this chapter.

(Pub. L. 100–298, § 5, Apr. 28, 1988, 102 Stat. 433.)

§ 2105. Rights of ownership

(a) United States title

The United States asserts title to any abandoned shipwreck that is—

(1) embedded in submerged lands of a State;

(2) embedded in coralline formations protected by a State on submerged lands of a State; or

(3) on submerged lands of a State and is included in or determined eligible for inclusion in the National Register.

(b) Notice of shipwreck location; eligibility determination for inclusion in National Register of Historic Places

The public shall be given adequate notice of the location of any shipwreck to which title is asserted under this section. The Secretary of the Interior, after consultation with the appropriate State Historic Preservation Officer, shall make a written determination that an abandoned shipwreck meets the criteria for eligibility for inclusion in the National Register of Historic Places under clause (a)(3) of this section.

(c) Transfer of title to States

The title of the United States to any abandoned shipwreck asserted under subsection (a) of this section is transferred to the State in or on whose submerged lands the shipwreck is located.

(d) Exception

Any abandoned shipwreck in or on the public lands of the United States is the property of the United States Government. Any abandoned shipwreck in or on any Indian lands is the property of the Indian tribe owning such lands.

(e) Reservation of rights

This section does not affect any right reserved by the United States or by any State (including any right reserved with respect to Indian lands) under—

(1) section 1311, 1313, or 1314 of this title; or

(2) section 414 or 415 of title 33.

(Pub. L. 100–298, § 6, Apr. 28, 1988, 102 Stat. 433.)

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in sections 2103, 2106 of this title.

§ 2106. Relationship to other laws

(a) Law of salvage and law of finds

The law of salvage and the law of finds shall not apply to abandoned shipwrecks to which section 2105 of this title applies.

(b) Laws of United States

This chapter shall not change the laws of the United States relating to shipwrecks, other than those to which this chapter applies.

(c) Effective date

This chapter shall not affect any legal proceeding brought prior to April 28, 1988.

(Pub. L. 100–298, § 7, Apr. 28, 1988, 102 Stat. 434.)

CHAPTER 40—RECLAMATION STATES EMERGENCY DROUGHT RELIEF

Sec.

2201. Definitions.

SUBCHAPTER I—DROUGHT PROGRAM

2211. Assistance during drought; water purchases.
(a) Construction, management, and conservation.
(b) Assistance to willing buyers and sellers.
(c) Water purchases by Bureau.
(d) Water banks.
2212. Availability of water on temporary basis.
(a) General authority.
(b) Special provisions applicable to temporary water supplies provided under this section.
(c) Contract price.
(d) Fish and wildlife.
(e) Nonproject water.
(f) Reclamation Fund.
2213. Loans.
2214. Applicable period of drought program.
(a) In general.
(b) Coordination with BPA.
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SUBCHAPTER II—DROUGHT CONTINGENCY PLANNING

2221. Identification of opportunities for water supply conservation, augmentation and use.
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2223. Plan elements.
(a) Plan provisions.
(b) Federal Reclamation projects.
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(d) Compliance with law.
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2224. Recommendations.
(a) Approval.
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2225. Reclamation Drought Response Fund.
2226. Technical assistance and transfer of precipitation management technology.
(a) Technical assistance.
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2241. Authorization of appropriations.
2242. Authority of Secretary.
2243. Temperature control at Shasta Dam, Central Valley Project.
2244. Effect of chapter on other laws.
(a) Conformity with State and Federal law.
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2245. Excess storage and carrying capacity.